# PROPERTY MANAGEMENT AGREEMENT

THIS PROPERTY MANAGEMENT AGREEMENT (the "Agreement") is made between the undersigned owner(s) of the property described below ("Owner") and Fakeview Property Management, Inc., a licensed real estate brokerage ("Manager"). Owner appoints Manager as the exclusive managing agent of the Property on the terms below.

**1. THE PROPERTY**

Property address: _____

Number of units: _____

**2. TERM**

This Agreement begins on _____ (the "Commencement Date") and continues for one (1) year, renewing month to month afterward until either party gives sixty (60) days' written notice of termination.

**3. MANAGEMENT FEES**

Owner will pay Manager a monthly management fee equal to _____% of gross rents collected, and a leasing fee of $_____ for each new lease signed. Manager may deduct its fees from rents collected before remitting the balance to Owner.

**4. MANAGER'S DUTIES**

Manager will advertise vacancies, screen prospective tenants in compliance with fair housing laws, negotiate and sign leases on Owner's behalf within the rent guidelines Owner approves, collect rents and security deposits, and hold security deposits in a trust account as required by law.

Manager will arrange routine maintenance and repairs, respond to tenant maintenance requests, and conduct a move-in and move-out inspection of each unit. Manager will not authorize any single repair exceeding five hundred dollars ($500) without Owner's prior approval, except in an emergency that threatens health, safety or the Property.

Manager will provide Owner with a monthly statement of income and expenses by the fifteenth (15th) day of each month and an annual summary suitable for tax preparation.

**5. OWNER'S DUTIES**

Owner will maintain property and liability insurance on the Property naming Manager as an additional insured, will keep a reserve of not less than one thousand dollars ($1,000) with Manager for repairs, and will disclose to Manager all known material defects, including lead-based paint where applicable.

Owner will not interfere with tenants' quiet enjoyment or deal directly with tenants regarding matters Manager is handling, and will promptly refer any tenant communications to Manager.

**6. INDEMNIFICATION**

Owner will indemnify and hold Manager harmless from claims, losses and expenses arising from the condition of the Property or Owner's acts, except to the extent caused by Manager's negligence or willful misconduct. Manager will indemnify Owner against claims arising from Manager's negligence or willful misconduct in performing its duties.

**7. TERMINATION**

Either party may terminate this Agreement for cause on fifteen (15) days' written notice if the other party materially breaches it. On termination, Manager will deliver to Owner all security deposits, leases, keys and records relating to the Property within thirty (30) days, and will be paid any fees earned through the termination date.

**8. GENERAL PROVISIONS**

This Agreement is governed by the laws of the state in which the Property is located. It is the entire agreement of the parties and may be amended only in writing signed by both parties. Notices may be given by email to the addresses below. If any provision is held unenforceable, the rest of this Agreement remains in effect.

Manager is an independent contractor. Nothing in this Agreement makes Manager an employee or partner of Owner. Manager may perform services for other property owners, including owners of properties that compete with the Property.

IN WITNESS WHEREOF, Owner and Manager have signed this Agreement on the dates below.

**OWNER:**

_____ Date: _____

*Owner Signature*

_____

*Print Name*

Email: _____

**MANAGER:**

Fakeview Property Management, Inc.

By: _____ Date: _____

Its: _____